



COMPANY POLICY

Controlled Substances & Alcohol Use & Testing Policy

CPC Logistics Canada · Reviewed February 2017 · National Safety Code program

1.0 Purpose

Establish and maintain programs designed to help prevent accidents and injuries resulting from the misuse of alcohol or the use of controlled substances by drivers of commercial work vehicles.

2.0 Scope

This policy applies to each CPC person who operates a commercial vehicle in any U.S. state, and to their supervisors, and is subject to the commercial driver's licence requirements of the Canadian National Safety Code.

2.1 Additional Persons

This policy also applies to all CPC people who have cause to operate tractor-trailers, tractor-tankers, straight-body or cube vehicles in the course of their employment, subject to the conditions outlined in Section 2.0 above.

3.0 Administration

Program administrators are the only persons authorized to request or have knowledge of testing results, and are further authorized to act on behalf of the Company with respect to this policy. Administrators are designated for each fleet base and head office.

4.0 Information Availability

A copy of this policy and other information relating to it is kept in designated locations at each fleet base and is available to all employees defined in Sections 2.0 and 2.1.

5.0 Employee Assistance Coordinator

Two persons are designated as CPC employee assistance coordinators for the purpose of this policy. The designates handle employee disclosures and referrals to the Employee Assistance Plan.

6.0 Company & Legislative Rules & Prohibitions

The following parameters are set by the Company and either meet or exceed legislative standards. They must be adhered to at all times.

6.1 Alcohol Concentration

Must be below 0.00 at the commencement of the work shift or period.

6.2 On-Duty Use of Alcohol

Strictly prohibited at all times.



6.3 Post-Accident Use

Consumption is prohibited until a test has been administered.

6.4 Refusal to Submit

Employees cannot refuse to submit to any alcohol or controlled-substance test requested. A refusal to submit is viewed as a positive result and will result in immediate suspension without pay.

6.5 Controlled Substances Use

Controlled substances are strictly prohibited unless prescribed by a licensed medical practitioner who has advised that the medication will not affect the ability to perform normal duties. Positive test results for non-prescribed controlled substances will result in immediate suspension without pay.

7.0 Required Tests

This policy requires several types of testing, subject to legislative and Company requirements. Company requirements may exceed legislative requirements.

7.1 Pre-Employment Testing

Prior to the first time an employee performs driving duties for CPC, he or she shall undergo controlled-substances testing as set out in this policy, and upon each periodic medical required thereafter.

7.1.1 Exception

An exception to 7.1 above is permitted for the purpose of taking a road test.

7.2 Post-Accident Testing

The driver must submit to a test as soon as possible after an occurrence on any public road or property while operating a commercial vehicle.

7.2.1 Private Property

CPC reserves the right to conduct testing as described in 7.2 when any occurrence is on private property of any commercial or residential type.

7.3 Random Testing

Per legislative requirements, CPC will test a minimum of 50 percent of the average number of drivers in one calendar year. The tests are spread reasonably through the year, although no fixed days, weeks, or months are used.

7.3.1 Driver Must Proceed

The driver must proceed directly to the testing site when directed to do so. He or she may be directed prior to, during, or immediately following the work period.

7.4 Reasonable Suspicion Testing

A driver is referred for reasonable-suspicion testing when any CPC designate makes specific observations as to the appearance, behaviour, speech, or body odour of the driver.

7.4.1

The driver must be informed of the reason for the reasonable suspicion.



7.4.2

The driver cannot refuse to submit to a reasonable-suspicion test. Refusal will result in immediate suspension without pay.

7.5 Positive Test / Confirmation Test

Following a positive test result, the employee will submit a confirmation sample which, using a different method of testing from the first sample, serves to confirm the positive result.

7.6 Return-to-Duty / Follow-Up Testing

Testing takes place prior to the return to work of any driver who previously had a positive test. CPC reserves the right, at no notice, to require a total of six subsequent tests in the 12-month period immediately following the return-to-work date.

8.0 Types of Substances

Samples are tested for the following, including all derivatives or combinations of the below:

- Marijuana
- Cocaine
- Opiates
- Amphetamines
- Phencyclidine
- Alcohol

9.0 Employee Assistance Plan

CPC provides a range of employee assistance services under our group insurance plan. Services are confidential and provided at no charge to the employee.

9.1 Availability

Employees can voluntarily and confidentially avail themselves of the plan, without sanction or reprisal from the Company, through the employee assistance coordinator designated in Section 5.0.

9.2 Details of Plan

Available through any CPC designate.

10.0 Requests for EAP Access

10.1 Proactive Request

Provided it is not the result of a positive test or an accident found to have been caused by or contributed to by alcohol or controlled substances, an employee will be confidentially referred to the plan. If necessary, a leave of absence will be allowed without loss of seniority or benefits, during which the employee can avail themselves of the short- or long-term portion of the employee insurance plan in conjunction with the EAP.

10.2 Reactive Request



A request for access that follows a positive test, or an accident caused by or contributed to by alcohol or controlled substances, is considered on a case-by-case basis depending on the circumstances. Any referrals agreed to may not be supplemented by wages or disability benefits.

10.3 Denials of Access

Depending on the circumstances, referrals for access may, at CPC's discretion, be denied.